

threatens her survival, her cognition, or her capacity to attend and meaningfully participate in a trial set in the ordinary course.” (Dec. Hawathmeh ¶ 3.)

Based on the medical records, there is no dispute that Plaintiff was injured in the fall. However, Plaintiff’s counsel’s declaration is the only one provided concerning her health condition.

Marriott persuasively argues that Plaintiff has not asserted that she suffers from any health condition that threatens her survival, her cognition, or her capacity to attend/participate in a normally set trial. This is important as it does not appear Plaintiff’s current health condition will adversely affect her ability to participate in the trial. Her injuries were primarily physical. Neither Plaintiff nor her counsel assert that Plaintiff is experiencing a terminal or even chronic illness nor rapid cognitive decline that would support a trial preference. Certainly, Plaintiff’s advanced age could potentially support a motion for trial preference based on CCP § 36(a) along with a finding that Plaintiff has a substantial interest in the action, both of which are conceded by Marriott. However, the Court must further find that her health is such “that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (CCP § 36(a)(1)-(2).) Here, Plaintiff has not established that a preference is necessary to prevent prejudicing her interest. Should Plaintiff obtain evidence to demonstrate a “cognitive decline”, or establish a sufficient basis for a preference, she is not foreclosed from bringing another motion. Additionally, the court does not find that preference should be granted in the interests of justice pursuant to CCP 36(e).

Motion for Trial Setting Preference DENIED.

Case Management Conference and OSC continued to 9.14.26.

Plaintiff’s counsel ordered to file new and updated Case Management Statement 10 days in advance of hearing regarding status of Discovery/ Alternative Dispute Resolution/ compliance of CRC 3.724 & LR 3218. Updated Case Management Statement shall be submitted on pleading paper with a brief summary of the status of the case and also address Counsel’s failure to appear at the Case Management Conference on 5.12.26. Do not use Judicial Counsel form CM-110. Failure to comply will result in sanctions.

Defendant not ordered to submit an updated CMC statement at this time.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2600012	PEARCE VS ELLENZ	MOTION TO QUASH SUBPOENA

Tentative Ruling: A subpoena “is a writ or order directed to a person and requiring the person’s attendance at a particular time and place to testify as a witness. It may also require a witness to bring any books, documents, electronically stored information, or other things under the witness’s control which the witness is bound by law to produce in evidence.” (C.C.P. § 1985(a).) `

“[T]he court, upon motion reasonably made by any person described in subdivision (b), or upon the court’s own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate

to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (C.C.P. § 1987.1.)

Procedural Issues

Plaintiff’s Argument:

Plaintiff argues that Defendants used the wrong subpoena, as they served Baron with Judicial Council Form SUBP-002, which Plaintiff alleges is a trial subpoena. Defendants contend that the subpoena “requires Ms. Baron to appear for deposition on July 30, 2026.” (Opp., p. 3.) Accordingly, Plaintiff is correct that Defendants have served the wrong subpoena, as the correct form is Judicial Council Form SUBP-020, a deposition subpoena.

Defendants’ Arguments:

Defendants contend the motion is procedurally defective because Plaintiff failed to meet and confer and because the motion is premature and lacks a separate statement.

There are no meet and confer requirements for a motion to quash, as specified under C.C.P. § 1985.3, 1985.6 and 1987.1.

A motion to quash must be served on the witness and deposition officer at least five days before the date set for production. (C.C.P. §§ 1985.3(g), 1985.6(f).) Here, Plaintiff’s motion is timely, as it was served before the date set for production. Although Defendants contend that the motion is premature because it was filed before Defendants served Baron on July 18, 2026, the motion is not set to be heard until July 30, 2026, after service was effected. Accordingly, Defendants’ timeliness argument is unavailing.

As for a separate statement, California Rule of Court, Rule 3.1345(a)(5) requires a separate statement “[t]o compel or to quash the production of documents or tangible things at a deposition.” The process by which a nonparty is required to provide discovery qualifies as a deposition subpoena. (C.C.P. § 2020.010(b).) A separate statement is not required when no response has been provided to the discovery. (C.R.C. Rule 3.1345(b)(1).) Here, however, Plaintiff served objections to the Subpoena on July 16, 2026. (Kaoud Decl., Exh. 5.) Therefore, a separate statement is required.

A trial court is “well within its discretion” to deny a motion to compel production of documents that lacks a separate statement. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893, 83 Cal.Rptr.3d 146 [discussing former Rule 3.1020, which requires a separate statement on a motion to compel further production of documents].) However, the lack of a separate statement does not limit a trial court’s discretion to grant the motion “notwithstanding the absence of a separate statement.” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409, fn. 14 [discussing former Rule 3.1020].) The Court exercises its discretion to consider the merits of the motion in the absence of a separate statement.

The Subpoena requests that Baron appear and produce documents as to the following categories:

1. All communications between you and Plaintiff Kent Pearce (“Plaintiff”) concerning this action.
2. All notes, memoranda, summaries, chronologies, outlines, or other documents you created or maintained concerning this action.

3. All documents concerning this action and Plaintiff's employment.
4. All of your AI searches, prompts, queries, chat histories, results, summaries, outputs, or related documents concerning this action.

(Kaoud Decl., Exh. 4.)

Plaintiff contends that the Subpoena violates privacy rights, attorney-client privilege, and the attorney work product doctrine.

Privacy Rights:

"The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citations.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations." (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) There is no compelling interest or need requirement based on *Williams*, in every case, but rather, the court is to consider the type of privacy, the seriousness of invasion, and the availability of alternatives and protective measures. (*Id.* at 556-559.) Discovery will not be ordered if the information sought is available from other sources or through less intrusive means. (*Allen v. Superior Court* (1984) 151 Cal.App.3d 447, 449 [applying to third party privacy rights].)

Plaintiff contends that the Subpoena violates his and Baron's privacy rights, as the requested documents may implicate family conversations or personal AI searches. However, Plaintiff has not cited any authority to support that family conversations are protected by a legally cognizable privacy right. Further, the Subpoena narrowly tailors the requests to all communications, documents, and AI searches "concerning this action." Thus, Plaintiff fails to justify his privacy objection.

Attorney-Client Privilege:

The party asserting the privilege must present facts supporting a prima facie claim of privilege; only then does the opposing party have the burden of showing that the privilege does not apply, an exception applies, or there was a waiver. (*Oxy Resources California, LLC v. Superior Court* (2004) 115 Cal.App.4th 874, 894.)

The attorney-client privilege prevents the disclosure of confidential communications between attorney and client. (*Mitchel v. Superior Court* (1984) 37 Cal.3d 591, 599.) "The attorney-client privilege, set forth at Evidence Code section 954, confers a privilege on the client to refuse to disclose, and to prevent another from disclosing, a confidential communication between client and lawyer...." (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 732 [internal citation and quotations omitted].)

Here, Plaintiff concedes Baron is his daughter and is "not an attorney, paralegal, or other legal professional." (Pearce Decl., ¶ 2.) Accordingly, the attorney-client privilege does not apply to Baron's communications with Plaintiff (Category 1) because Baron is not an attorney, and Plaintiff is not her client.

Attorney Work Product Doctrine:

Attorney work product pertains to an attorney's thoughts, impressions, or legal theories on a matter. (*County of Los Angeles v. Superior Court* (2000) 82 Cal.App.4th 819, 833.) The work product privilege "may also be asserted by a pro se litigant because the privilege 'is intended for the protection of litigants, not just attorneys.' [Citation.]" (*Meza v. H. Muehlstein & Co., Inc.* (2009) 176 Cal.App.4th 969, 977.)

Under C.C.P. § 2018.030, the attorney work product doctrine provides two levels of protection – absolute or qualified. "A writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories" falls within the absolute protection and is not discoverable under any circumstance. (C.C.P. § 2018.030(a).) All other work product of an attorney "is not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense or will result in an injustice." (C.C.P. § 2018.030(b).)

"[T]he Legislature in enacting section 2018.030 did not define 'work product' and instead left the term open to judicial interpretation." (*Coito v. Superior Court* (2012) 54 Cal.4th 480, 494.) Courts have defined "attorney work product" as "the product of the attorney's 'effort, research, and thought in the preparation of his client's case. It includes the results of his own work, and the work of those employed by him or for him by his client, in investigating both the favorable and unfavorable aspects of the case, the information thus assembled, and the legal theories and plan of strategy developed by the attorney—all as reflected in interviews, statements, memoranda, correspondence, briefs, and any other writings reflecting the attorneys 'impressions, conclusions, opinions, or legal research or theories' and in countless other tangible and intangible ways.' " (*Meza, supra*, 176 Cal.App.4th 969, 977, quoting *BP Alaska Exploration, Inc. v. Superior Court* (1988) 199 Cal.App.3d 1240, 1253-1254, fn. 4; see *Citizens for Ceres v. Superior Court* (2013) 217 Cal.App.4th 889, 911 ["Work produced by an attorney's agents and consultants, as well as the attorney's own work product, is protected by the attorney work product doctrine."].)

Plaintiff seeks attorney work product protection over Baron's communications, AI searches, and litigation research or preparation, arguing, "[t]he work product belongs to the party who created or directed its creation. If Ms. Baron assisted her father with any litigation research or preparation, those materials were created at Plaintiff's direction for litigation purposes — the very definition of work product. Serving a subpoena on the person who assisted does not strip the protection; it reinforces it." (Motion, p. 8.) In essence, Plaintiff is arguing that any communications, documents, or AI searches created by Baron regarding this action were created in her capacity as Plaintiff's agent. The work product protection extends to cover the work product of an attorney's [or pro se litigant's] agents, including investigators and researchers. (See *Rodriguez v. McDonnell Douglas Corp.* (1978) 87 Cal.App.3d 626, 647-648, disapproved on other grounds by *Coito, supra*, 54 Cal.4th at 499; see also *Citizens for Ceres, supra*, 217 Cal.App.4th at 911; *Meza, supra*, 176 Cal.App.4th at 977; *Southern Calif. Edison Co. v. Sup. Ct.* (2024) 102 Cal.App.5th 573, 586-587.) As such, Plaintiff has established that the documents sought in Categories 1 through 4 are subject to qualified work product protection.

Defendants argue that good cause exists to compel the disclosure of the subpoenaed documents because Plaintiff identified Baron as someone who reviewed a key agreement underlying his wrongful termination lawsuit and gave opinions regarding the details of his claims, including that Plaintiff had a "good case" based on such details. (Opp., p. 5.) However, Baron is not an attorney, paralegal, or legal professional, and

Defendants do not provide any argument as to how Baron's lay opinions as to the merits of her father's case are relevant to overcome the qualified privilege of work product protection. Further, "[a] bare showing of 'good cause' is *not enough* to compel production of materials constituting attorney work product. Instead, [a] court will order disclosure of such materials only if the party seeking discovery can demonstrate injustice or unfair prejudice, *a much heavier burden*." (*People v. Hunter* (2017) 15 Cal.App.5th 163, 182, quoting Weil & Brown, *Cal. Practice Guide: Civil Procedure Before Trial* (The Rutter Group 2017) § 8:241.3, p. 8C-81 [original italics, quotations omitted].) Defendants have failed to demonstrate any good cause, let alone the required injustice or unfair prejudice, sufficient to overcome the work product protection over the subpoenaed documents at issue.

Motion to Quash Subpoena GRANTED.

Defendant's Request for Sanctions DENIED.

Motions to Compel confirmed for 9.16.26.